

Appendix A to opinion of ALITO, J.

stept up. [1873 LD. HOUGHTON *Monogr.* 280 Sydney Smith .. often spoke with much bitterness of the growing belief in three Sexes of Humanity—Men, Women, and Clergymen.]

e. *The sex*: the female sex. [F. *le sexe*.] Now *rare*.

1589 PUTTENHAM *Eng. Poesie* III. xix. (Arb.) 235 As he that had tolde a long tale before certaine noble women, of a matter somewhat in honour touching the Sex. 1608 D. T[UVILL] *Ess. Pol. & Mor.* 101 b, Not yet weighing with himselfe, the weaknesse and imbecillitie of the sex. 1631 MASSINGER *Emperor East* I. ii, I am called The Squire of Dames, or Servant of the Sex. 1697 VANBRUGH *Prov. Wife* II. ii, He has a strange penchant to grow fond of me, in spite of his aversion to the sex. 1760-2 GOLDSM. *Cit. W.* xcix, The men of Asia behave with more deference to the sex than you seem to imagine. 1792 A. YOUNG *Trav. France* I. 220 The sex of Venice are undoubtedly of a distinguished beauty. 1823 BYRON *Juan* XIII. lxxix, We give the sex the *pas*. 1863 R. F. BURTON *W. Africa* I. 22 Going ‘up stairs’, as the sex says, at 5 a.m. on the day after arrival, I cast the first glance at Funchal.

f. Without *the*, in predicative quasi-adj. use=feminine. *rare*.

a 1700 DRYDEN *Cymon & Iph.* 368 She hugg’d th’ Offender, and forgave th’ Offence, Sex to the last!

2. Quality in respect of being male or female.

a. With regard to persons or animals.

1526 *Pilgr. Perf.* (W. de. W. 1531) 282 b, Ye bee, whiche neuer gendreth with ony make of his kynde, nor yet hath ony distinct sex. 1577 T. KENDALL *Flowers of Epigr.* 71 b, If by corps supposd may be her seex, then sure a virgin she. 1616 T. SCOTT *Philomythie* I. (ed. 2) A 3 Euen as Hares change shape and sex, some say Once euery yeare. 1658 SIR T. BROWNE *Hydriot.* iii. 18 A critical view of bones makes a good distinction of sexes. **a** 1665 DIGBY *Chym. Secrets* (1682) II. 225 Persons of all Ages and Sexes. 1667 MILTON *P. L.* I. 424 For Spirits when they please can either Sex assume, or both. 1710-11 SWIFT *Jrnl. to Stella* 7 Mar., I find I was mistaken in the sex, ‘tis a boy. 1757 SMOLLETT *Reprisal* IV. v, As for me, my sex protects me. 1825 SCOTT *Betrothed* xiii, I am but a poor and neglected woman, feeble both from sex and age. 1841 ELPHINSTONE *Hist. India* I. 349 When persons of different sexes walk together, the woman always follows the man. 1882 TENSION-WOODS *Fish N. S. Wales* 116 Oysters are of distinct sexes.

b. with regard to plants (see FEMALE *a.* 2, MALE *a.* 2).

1567 MAPLET *Gr. Forest* 28 Some seeme to haue both sexes and kindes: as the Oke, the Lawrell and such others. 1631 WIDDOWES *Nat. Philos.* (ed. 2) 49 There be sexes of hearbes .. namely, the Male or Female. 1720 P. BLAIR *Bot. Ess.* iv. 237 These being very evident Proofs of a necessity of two Sexes in Plants as well as in Animals. 1790 SMELLIE *Philos. Nat. Hist.* I. 245 There is not a notion more generally adopted, that that vegetables have the distinction of sexes. 1848 LINDLEY *Introd. Bot.* (ed. 4) II. 80 Change of Sex under the influence of external causes.

3. The distinction between male and female in general.
In recent use often with more explicit notion: The sum of